

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

June 11, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	AC 2525 Main, LLC v. City of Santa Ana 2023-01351524	<u>Petitioner AC 2525 Main LLC's Motion for Reconsideration</u> Petitioner AC 2525 Main, LLC (AC 2525) moves for reconsideration pursuant to Civil Procedure Code section 1008(a) of the court's March 26, 2026 order denying AC 2525's petition for writ of mandate. ROA 159. For the following reasons, AC 2525's motion for reconsideration is denied. AC 2525 filed the motion for reconsideration on April 14, 2026 and scheduled it for hearing on June 11, 2026. The court entered judgment on April 16, 2026. ROA 171. A motion for

reconsideration may only be considered before the entry of a judgment. *Eddy v. Sharp* (1988) 199 Cal.App.3d 858, 863 n.3; see also *Ramon v. Aerospace Corp.* (1995) 50 Cal.App.4th 1233, 1236 (“after entry of judgment, a trial court has no further power to rule on a motion for reconsideration”); *Safeco Ins. Co. v. Architectural Facades Unlimited, Inc.* (2005) 134 Cal.App.4th 1477, 1482 (“It is well settled that entry of judgment divests the trial court of authority to rule on a motion for reconsideration”). As judgment has been entered, AC 2525’s motion for reconsideration is accordingly denied.

Even if the court could consider AC 2525’s motion, however, the motion would still be denied. Section 1008(a) provides:

“When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.”

Civ. Proc. Code § 1008(a).

As an initial matter, AC 2525’s motion is not accompanied by an affidavit stating what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. The Thompson Declaration filed in support of AC 2525’s motion instead attests to various events predating the court’s March 26, 2026 order and attaches various documents that also predate the court’s order. ROA 166.

AC 2525 has also not demonstrated any new or different facts, circumstances, or law warranting reconsideration. AC 2525 asserts the administrative record was incomplete and missing “critical documentation.” Brief (ROA 166) at 6:12-13. AC 2525’s failure to identify before the writ hearing “critical documentation” it now contends the administrative record should have included—documentation that predates the writ hearing—is not a new or different fact, circumstance or law warranting reconsideration of the court’s order. Moreover, AC 2525 does not claim to have been unaware of the “critical documentation.” See *In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468 (“facts of which the party seeking reconsideration was aware at the time of the original ruling are not ‘new or different’”).

AC 2525 also argues that two statutes—one enacted on January 1, 2025 and one enacted on January 1, 2026—constitute new law warranting reconsideration. Laws enacted before the writ hearing are not “new law” warranting reconsideration. If AC 2525 desired to bring either or both of these laws to the court’s attention in

		connection with the writ, AC 2525 could have done so, including by seeking leave to file a supplemental brief in advance of the writ hearing. It did not do so. AC 2525's other arguments do not purport to identify new or different facts, circumstances or law, but rather reargue AC 2525's positions and express AC 2525's disagreement with the court's ruling. <i>E.g.</i>, Brief (ROA 166) at 2:16 ("Third, the Court's focus on Petitioner's ownership interest in the Property is misguided"); Reply (ROA 175) at 5:25-26 ("The Court should reconsider its order because its mootness determination rests on an incorrect legal conclusion"). Respondent City of Santa Ana filed a surreply (ROA 177) in which it seeks sanctions against AC 2525 pursuant to Civil Procedure Code section 128.5. The City's request for sanctions is denied without prejudice to the City filing and serving a motion for sanctions pursuant to section 128.5. The City's Reply Request for Judicial Notice is denied as the document is not material to the disposition of the motion for reconsideration. Respondent City of Santa Ana to give notice.
2	Alvira v. Pampanga Food Company, Inc., et al. 2025-01484062	<u>Plaintiff Balbino Alvira's Motion for Entry of Protective Order</u> Plaintiff Balbina Alvira moves for entry of a protective order following defendants Omni Resource Solutions, LLC's (Omni) and Pampanga Food Company, Inc.'s (Pampanga) refusals to respond to plaintiff's request that defendants stipulate to entry of a protective order based on the Los Angeles County Superior Court's model protective order. Omni did not file an opposition. Pampanga filed a "limited" opposition. Plaintiff agrees in his reply with Pampanga's request that the archival provision in paragraph 21 of plaintiff's proposed protective order (ROA 164) be made reciprocal. None of Pampanga's other objections to plaintiff's proposed protective order is persuasive. There is no need to restate portions of the court's March 5, 2026 order (ROA 153) in the protective order, to set forth Pampanga's litigation positions in the protective order, or to include obvious points (<i>e.g.</i>, the protective order is not a sealing order) in the protective order. Plaintiff's motion is granted. Plaintiff is ordered to file and serve <u>by June 18, 2026</u> a revised copy of plaintiff's proposed protective order (ROA 164) with paragraph 21 modified to be reciprocal. Pampanga's request that the court enter its competing proposed protective order (ROA 216) is denied. Plaintiff to give notice.
3	Arriola v. Harbor Distributing, LLC, et al. 2025-01502092	<u>Defendants Harbor Distributing, L.L.C. and Reyes Holdings, L.L.C.'s Motion to Stay</u> Defendants Harbor Distributing, L.L.C. and Reyes Holdings, L.L.C move to stay this class action pending resolution of two previously-filed class and representative action lawsuits (<i>Ascensao v. Harbor Distributing, L.L.C.</i>, Los Angeles County Superior Court Case No. 24STCV14911, and <i>Quinteros v. Harbor Distributing, L.L.C.</i>, San

		Francisco County Superior Court Case No. TC24-1404). Plaintiff did not file an opposition, and therefore defendants' unopposed motion is granted. This action is stayed pending resolution of <i>Ascensao v. Harbor Distributing, L.L.C.</i>, Los Angeles County Superior Court Case No. 24STCV14911, and <i>Quinteros v. Harbor Distributing, L.L.C.</i>, San Francisco County Superior Court Case No. TC24-1404. Defendants to give notice. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed May 29, 2026 (ROA 49). Based thereon, and in light of the court's concurrently-issued order staying this action, the June 11, 2026 status conference is continued to <u>October 8, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
4	Barcenas v. Bambuza OC Ventures LLC, et al. 2024-01415928	Off calendar.
5	Barcenas v. Bambuza OC Ventures LLC 2024-01433210	Off calendar.
6	Burrows v. Drybar Products, LLC 2025-01473104	Off calendar.
7	Guerra v. Pulmuone U.S.A., Inc., et al. 2022-01245975	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a class action and PAGA settlement. For the following reasons, plaintiff's motion is denied without prejudice. Plaintiff filed this motion for preliminary approval on April 18, 2025 seeking approval of a \$237,500 class and PAGA action settlement. ROA 170. In the court's August 21, 2025 order (ROA 185), the court stated that in addition to a \$5,000 enhancement award, plaintiff sought an additional \$5,000 payment from the gross settlement amount to compensate plaintiff for a "general release of claims against the Released Parties in connection with her alleged employment with Defendants and Plaintiff's waiver of California Civil Code § 1542," and that the court was unlikely to approve a settlement that provided for payment for plaintiff's general release from the gross settlement amount. The court further noted that the provision was inconsistent with paragraphs 1.23, 1.29 and 4.4 of the settlement agreement (and section 3(1) of the notice).

	8/21/25 Order (ROA 185). The court continued the hearing on the motion to February 5, 2026 to enable the parties to address the issues identified in the court’s order. Between the August 21, 2025 and February 5, 2026 hearings, the parties reduced the gross settlement amount from \$237,500 to \$232,500. In its February 5, 2026 order, the court stated: “Since the time of the last hearing on this motion (August 21, 2025), the parties have reduced the gross settlement amount from \$237,500 to \$232,500. It appears plaintiff agreed to reduce the gross settlement amount to obtain an additional \$5,000 for herself. See Supp. Brief (ROA 194) at ¶ 4 (at 3). If that is the case, why is it fair and reasonable to the class for the gross settlement amount to be reduced by \$5,000 so that plaintiff—who also seeks a \$5,000 enhancement award from the gross settlement amount—can be paid an additional \$5,000 to apparently compensate her for a general release of claims? In addition, can plaintiff be an adequate class representative if she agreed to reduce the gross settlement amount to obtain additional compensation for herself? More generally, if the parties intend to change the gross settlement amount, the parties must provide the anticipated high, low and average individual class and PAGA payments based on the new gross settlement amount, and must update any other information previously provided that is affected by the gross settlement amount.” 2/5/26 Order (ROA 209). The day the court issued the February 5, 2026 order, plaintiff’s counsel filed a declaration (ROA 207) in which counsel asserts that the “restructuring” of the settlement “did not change the economic reality of the Settlement” and “the reduced Gross Settlement Amount does not reduce the Class’s recovery and does not render Plaintiff an inadequate class representative.” Third Supp. Kwak Decl. (ROA 207) ¶¶ 10-11. (Plaintiff has not filed any additional documents addressing the February 5, 2026 order.) Plaintiff’s counsel’s statements appear inconsistent with the estimated high, low and average individual class payments stated in the Third Supplemental Kwak Declaration, which reflect that the estimated payments decreased when the parties decreased the gross settlement amount. Third Supp. Kwak Decl. (ROA 207) ¶ 13 (“The high, low, and average range of a Class Members’ potential recovery is \$1,896.49 (vs. \$2,053.82), \$7.68 (vs. \$8.32), and \$238.02 (vs. \$257.77), respectively”). Plaintiff’s counsel states this is because the number of estimated workweeks increased (Third Supp. Kwak Decl. ¶ 12), but provides no explanation why, if that is true, the same number of workweeks would not result in higher individual class payments for a \$237,500 settlement. In addition, counsel’s statements do not address the fundamental issues identified in the court’s February 5, 2026 order, i.e., (i) did plaintiff agree to reduce the gross settlement amount to obtain \$5,000 in compensation for herself (and do so while also seeking a second \$5,000 payment from the remaining gross settlement amount), and (ii) if she did, how can plaintiff be an adequate class
--	---

		representative? <i>See, e.g., J.P. Morgan & Co., Inc. v. Superior Court</i> (2003) 113 Cal.App.4th 195, 212 (“[t]he adequacy inquiry . . . serves to uncover conflicts of interest between named parties and the class they seek to represent”). The parties’ decision to renegotiate a material term of the settlement (i.e., the gross settlement amount) during the pendency of the motion requires denial of the motion. The denial is without prejudice to enable the parties to seek approval of the settlement in the form in which it now exists, including submitting valuation analysis of the settlement amount, the average, high and low individual class and PAGA payments, and any other information necessary for the court to determine whether the settlement is fair, reasonable and adequate. In addition, should plaintiff continue to seek an enhancement award, plaintiff should explain why an enhancement award would be appropriate in light of plaintiff’s apparent decision to reduce the gross settlement amount to obtain more money for herself. A status conference is scheduled for <u>September 24, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days in advance. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
8	Hannett, et al. v. Serendipity Hearing, Inc., et al. 2021-01216930	<u>Plaintiffs’ Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiffs’ motion for final approval of a \$325,000 class action and PAGA settlement. The court grants the motion as follows: \$5,000.00 for enhancement award to each plaintiff (\$10,000.00 total); \$97,500.00 for attorneys’ fees; \$18,477.54 for litigation costs; \$8,950.00 for settlement administration costs; and \$30,000.00 total PAGA penalties (\$22,500.00 to the LWDA). The objection is overruled, as it states no grounds for objection. Lee Decl. (ROA 233) Ex. C. The final accounting hearing is scheduled for <u>March 4, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller’s Office under the unclaimed property law. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.

9	Hannett v. Serendipity Hearing, Inc., et al. 2021-01229201	<u>Order to Show Cause re: Dismissal in Case No. 2021-01229201</u> The Order to Show Cause re Dismissal in Case No. 2021-01229201 remains scheduled for June 11, 2026 at 2:00 p.m. in Department CX105. Plaintiffs are ordered to appear. Failure to appear will result in dismissal of the entire action.
10	Jones, et al. v. JW Marriott Anaheim Resort 2021-01183306	Off calendar.
11	Navarro v. Beta Bionics, Inc. 2024-01392520	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$200,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff (not to exceed); \$60,000.00 for attorneys' fees (not to exceed); \$25,000.00 for attorneys' costs (not to exceed); \$5,850.00 for settlement administration fees (not to exceed); and \$20,000.00 total PAGA penalties (\$15,000.00 to LWDA). Plaintiff is ordered to file and serve <u>by June 18, 2026</u> a revised proposed order (stating the above amounts) with all exhibits attached: (1) a fully executed copy of the settlement agreement; (2) fully executed copies of the amendments to the settlement agreement; and (3) the notice packet (revised as stated above). Only <u>one</u> copy of the notice packet should be attached to the proposed order as an exhibit. Duplicate or superseded copies of the notice packet should not be attached to the proposed order. The notice packet should include the exclusion and objection forms, which should be revised as stated in the court's February 5, 2026 order (ROA 101): (1) All text after "[ADDRESS LINE 2]" and before "By signing below, I am excluding myself from the Settlement" on the exclusion form (i.e., the bolded text beginning with "DO YOU WANT TO PARTICIPATE . . ." and ending with "OR NOT PARTICIPATING IN THE THIS SETTLEMENT") should be removed; and (2) The following sentence should be removed from the objection form: "I HEREBY CONFIRM THAT I WAS EMPLOYED BY BETA BIONICS, INC. DURING THE CLASS PERIOD AS A NON-EXEMPT EMPLOYEE." The final approval hearing is scheduled for <u>October 22, 2026 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org).

		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
12	Rodriguez v. Covidien LP, et al. 2024-01394865	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$1,610,000 class action and PAGA settlement. The court has the following questions and comments: 1. Plaintiff filed an overlong brief without obtaining leave of court. Plaintiff should not do so again. Failure to comply with applicable court rules may result in sanctions and/or an order striking the overlong brief. <u>As to the settlement:</u> 2. The settlement agreement is between plaintiff and defendant Covidien LP. How and when does plaintiff propose to resolve the case against defendants Medtronic, Inc. and Medtronic USA, Inc.? 3. Plaintiff should state her total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). Plaintiff should also submit a copy of her individual settlement agreement. 4. The "Released Class Claims" in paragraph 1.38 should be revised as follows: (i) the word "reasonably" should be inserted in the second sentence after "or" and before "could have been alleged"; and (ii) in the second sentence, the phrase "of the First Amended Class Action and Representative Action Complaint" should be replaced with "alleged in the First Amended Class Action and Representative Action Complaint." 5. In the first sentence of the "Released PAGA Claims" in paragraph 1.39 the redundant phrase "for civil penalties available under PAGA" should be removed. The second sentence is overbroad and unclear and should be removed. In addition, the phrase "PAGA Employees" does not appear to be defined in the settlement agreement and should be replaced with a term (e.g., Aggrieved Employees) that is defined in the agreement. 6. The "Released Parties" provision in paragraph 1.40 is overbroad as it includes unrelated, unidentified and/or ambiguous third parties such as "affiliates" and "sponsored employee benefit plans, and their respective successors and predecessors in interest, all of their respective officers, directors, employees, administrators, fiduciaries, trustee and agents, and each of their past, present and future officers, directors, shareholders, employees, agents, principals, heirs, representatives,

		accountants, auditors, consultants, attorneys, insurers and reinsurers.” 7. Defendant should state in declarations filed with the court, whether, after making reasonable inquiry, since the time it signed the settlement agreement they have become aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declaration(s) shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 8. The phrase “and the LWDA” should be removed in paragraph 6 and paragraph 6.3. 9. The second-to-last sentence in in paragraph 8.6 should be revised to state: (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. In the last sentence of paragraph 8.6, the word “initial” should be inserted before “determination.” 10. Subsection (1) of paragraph 9 should be removed. The court will not approve a settlement that permits defendant to shorten the Class Period and/or the PAGA Period. 11. While the court will not determine the amount of attorneys’ fees to be awarded until final approval, the court is unlikely to approve attorneys’ fees in excess of 30% of the gross settlement amount absent unique circumstances. Plaintiff’s counsel should address in the supplemental filing whether any such unique circumstances exist here. 12. Plaintiff seeks an enhancement award of \$15,000. While the court will not determine the amount of any enhancement award for plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. Plaintiff should address in the supplemental filing whether any such unique circumstances exist here. <u>As to the notice:</u> 13. The notice should be revised consistent with the above. 14. As a general observation, the notice should be substantially shortened and duplicative language and sections should be removed.
--	--	--

		15. The phrase "and PAGA" should be inserted after "CLASS ACTION" in the title of the notice and throughout the document, e.g., in the second sentence of the second paragraph on page 1. 16. The phrase "against the Defendant" should be removed from the first box on page 1 as it is inconsistent with the settlement agreement. 17. The word "then" should be removed from the first sentence the second box on page 1. 18. The phrase "will have the final decision" in the second box on page 1 should be revised as stated above. 19. The hearing time in the box at the top of page 2 should be replaced with "2:00 p.m." 20. The filing dates of the two pleadings in section 1 on page 2 are incorrect. 21. Section 1 should identify all of the defendants. 22. The phrase "and PAGA" should be inserted in the first sentence of the third paragraph of section 1 on page 2. The first sentence should end after "of the above-captioned action." 23. The first sentence of the fourth paragraph of section 1 on page 1 should be removed, as should the phrase "At the hearing" at the beginning of the second sentence. The word "has" should be inserted after "The Court" and before "granted" in the second sentence of the fourth paragraph of section 1. 24. The word "expressly" should be removed in the first sentence of the second paragraph of section 2. The same paragraph should be substantially shortened. 25. The word "estimated" should be removed from the first bullet point section in section 3. The word "reasonable" should be removed from the second bullet point section in section 3, and the last sentence of the second bullet point section should be removed. The costs amount stated in that bullet point second is inconsistent with the settlement agreement and should be revised. 26. The hearing time in section 10 should be replaced with "2:00 p.m." 27. The word "posed" in section 11 should be "posted." 28. The word "TAXED" in the box on the second page of the dispute form should be "FAXED." 29. The dispute form should include pay period disputes.
--	--	--

		30. The dispute form should be substantially shortened, and it need not be signed under penalty of perjury. 31. The hearing date and time, judge and department should be removed from the objection form. The method of submitting the objection form stated in the last sentence the all caps paragraph is inconsistent with the settlement agreement and should be revised. 32. The exclusion form need not be signed under penalty of perjury. <u>As to the proposed order (ROA 76, 84):</u> 33. The proposed order should be revised consistent with the above. 34. The settlement agreement, any amendment(s) thereto, and the notice packet (in English and Spanish) should be attached to the proposed order as exhibits. The proposed preliminary approval order and the proposed final approval order should not be attached to the proposed order as exhibits. Only <u>one</u> copy of the notice should be attached to the proposed order as an exhibit. 35. The word "provisionally" in paragraph 4 should be replaced with "preliminarily" in two places. 36. "Plaintiffs" in paragraph 6 should be "Plaintiff." 37. The word "conditionally" in paragraph 7 should be replaced with "preliminarily." 38. The proposed order should also identify the Aggrieved Employees and the PAGA Period. 39. Paragraph 10 is duplicative of paragraph 2. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>October 15, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
--	--	---

13	Solorzano v. T&J Fresh Co. 2018-00981299	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$110,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The parties have added terms to paragraph 5 of the settlement agreement, including that if defendant defaults on the second settlement installment payment and does not cure the default, the settlement agreement "shall become null and void." Amendment ¶ 2.6 (revising paragraph 5). Why would the settlement agreement become "null and void" if defendant does not pay the entire settlement amount? In addition, in the event the court grants approval of the settlement, the court will enter judgment based on the settlement agreement. 2. Plaintiff's counsel states plaintiff seek a \$7,500 enhancement payment. As an initial matter, and as identified in the court's August 21, 2025 order (ROA 499), the settlement agreement remains inconsistent regarding an enhancement payment for plaintiff. <i>Compare</i> Settlement Agreement ¶¶ 1.16, 3.2.3 <i>with</i> Settlement Agreement ¶¶ 1.10, 1.15; see also 8/21/25 Order (ROA 499) No. 3. The amendment to the settlement agreement does not address this issue. In addition, absent unique circumstances, the court is unlikely to approve an enhancement award for plaintiff of more than \$500 for this modest settlement. If any such unique circumstances exist, plaintiff should identify them in the supplemental filing. 3. In the August 21, 2025 order, the court stated that the settlement agreement provides defendant will pay the gross settlement amount in two "installment" payments. Settlement Agreement ¶ 4.3. The court asked why defendant is paying the settlement in two payments, and stated that if that is due to defendant's financial condition, the parties must submit evidence of defendant's financial condition, such as cash flow statements, profit and loss statements and a balance sheet. Plaintiff's counsel states that "[d]efendant confirmed that it was financially incapable of paying the settlement in a lump sum and will submit financial documentation to the court to support its financial condition." Supp. Jackson Decl. (ROA 514) ¶ 7. Defendant has not submitted any No financial documentation to the court. 4. In the August 21, 2025 order, the court stated that plaintiff's counsel sought costs in the amount of \$24,727.89. The court stated that (i) postage charges are not recoverable and should be removed and (ii) plaintiff should explain the translation charges and state the depositions taken and when they were taken. 8/21/25 Order (ROA 499) No. 9.
----	--	---

		Plaintiff's costs still include postage (Supp. Jackson Decl. Ex. C (at p. 1)) and plaintiff has not explained the translation charges or stated the depositions taken and when they were taken. 5. Plaintiff's counsel has not identified any unique circumstances warranting attorneys' fees in excess of 25% of the gross settlement amount. See 8/21/25 Order (ROA 499) No. 11. <u>As to the notice letter:</u> 6. The notice letter should be revised consistent with the above. 7. The second sentence of the first paragraph of the notice letter should be removed. 8. "Mr. Solorzano" should be removed after "Plaintiff" throughout the notice letter. 9. The word "him" in the third sentence of the first paragraph should be replaced with "he." 10. The notice letter should use the same terms as in the settlement agreement, e.g., "Aggrieved Employees" not "PAGA Group Members." 11. The notice letter should explain that defendant is funding the settlement in two installments. 12. The defendant in the last sentence of the first paragraph is incorrect. In addition, the defendant should be identified in the third sentence of the first paragraph where plaintiff's claims are described. 13. The last sentence of the first paragraph should be revised to state: "PAGA is a law authorizing civil penalties for violations of the California Labor Code." 14. The second sentence of the second paragraph should be removed. 15. The word "since" in the last sentence of the second paragraph should be removed. 16. The word "employees" in the first sentence of the fifth paragraph should be capitalized. 17. The fifth paragraph on the first page (carrying over to the top of the second page) contains redundant language. Any repeated statements should be removed. 18. The first full paragraph on the second page should state when the aggrieved employees' release is effective. In addition, the release stated in that paragraph is inconsistent with the aggrieved employees' release in the settlement agreement and should be revised.
--	--	---

		19. The notice letter should state the url for the settlement administrator's website and should also state that the settlement administrator will post the judgment on the website for at least 180 days. 20. The settlement administrator identified in the notice letter is not the settlement administrator that submitted a declaration to the court. ROA 518. <u>As to the proposed order and judgment (ROA 517):</u> 21. The proposed order and judgment should be revised consistent with the above. 22. Counsel information should be removed from the caption page. 23. The proposed order and judgment should state defendant is funding the settlement in two installments. 24. The parties must submit a Word version of the proposed order. 25. The proposed order and judgment should include a statement that the court retains jurisdiction to enforce the settlement pursuant to Civil Procedure Code section 664.6. The hearing on plaintiff's motion for approval is continued to <u>October 22, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
14	Torres-Sanabria v. National Instruments Corporation, et al. 2023-01369943	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future

ones, and to maximize enforcement of state labor laws.” *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77.

The court has reviewed and considered the papers filed in support of plaintiff’s motion for approval of a \$90,000 PAGA settlement. The court has the following questions and comments:

1. Were the motion papers submitted to the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected.
2. Plaintiff filed an overlong brief without obtaining leave of court. Plaintiff should not do so again. Failure to comply with applicable court rules may result in sanctions and/or an order striking the overlong brief.

As to the settlement:

3. The parties should provide the high and low individual PAGA payments.
4. Plaintiff should state his total compensation to be received (including for any individual claims).
5. The “Released Parties” provision in paragraph 1.26 is overbroad. It includes unrelated, ambiguous unidentified and/or “indirect third parties such as “members,” “agents, representatives, attorneys, insurers, partners, investors, . . . franchisees, administrators, . . . affiliates, . . . staffing agencies, and joint venturers, and all persons acting under, by, through, or in concert with any of them, and each of them.”
6. The phrase “Error! Reference source not found” in paragraph 2.1 should be revised. The same phrase appears in paragraph 11 of the Lazar Declaration (ROA 102).
7. The phrase “the State of California and the Labor and Workforce Development Agency” in paragraphs 5 and 5.1 should be replaced with “and the Aggrieved Employees.”
8. The phrase “but not limited to” in paragraph 5.1 should be removed.
9. Plaintiff’s counsel seeks attorneys’ fees totaling one-third of the Gross Settlement Amount. Absent unique circumstances, the court is unlikely to approve an attorneys’ fees award that exceeds 25% of the Gross Settlement Amount in connection with this modest settlement. Plaintiff’s counsel should address in the supplemental filings whether any such unique circumstances exist here.
10. Plaintiff’s counsel must submit copies of time records, billing statements, or other records contemporaneously documenting the work performed and time spent detailing

		the specific tasks performed on the case, the time spent on each task, and the individual(s) who performed the task. 11. Plaintiff's counsel seeks litigation costs in the amount of \$15,454.46. Bibiyan Decl. (ROA 96) ¶ 38 & Ex. 1. Postage, FedEx and copying charges are not recoverable and should be removed. Plaintiff's counsel should submit invoices substantiating the mediation and "expert date consultant" fees. Plaintiff's counsel should also explain why costs totaling approximately 17% of the gross settlement amount are reasonable for this case. 12. Plaintiff's counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. 13. The parties (plaintiff and defendants) should state in declarations filed with the court whether, after making reasonable inquiry, they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in the action being settled. If any such actions are known to exist, the declaration(s) shall also state the name and case number of any such case and the procedural statues of the case, and describe the impact of the settlement on that case. <u>As to the notice letter:</u> 14. The notice letter should be revised consistent with the above. 15. The notice letter should (i) provide an explanation of PAGA; (ii) describe the factual allegations of the operative complaint; (iii) describe the scope of released claims; (iv) state the gross settlement amount, net settlement amount, and the portions allocated to the LWDA and the aggrieved employees; (v) explain how the individual payments will be calculated; (vi) describe the recipient's responsibility for any taxes payable on the amount received; and (vii) notify the aggrieved employees that they cannot opt out of the settlement and that, even if they do not cash their checks, they will be bound by the release. 16. The phrase "of the Released Claims" should be removed in the first full paragraph on page 2. 17. The third full paragraph on page 2 should be removed, as it appears inapplicable and is inconsistent with the paragraph above it. 18. Will the settlement administrator maintain a website for this case? If so, the notice letter should provide the URL for case website and identify the key case documents (including the order and judgment) that will be posted on the website, and should state that judgment will be posted on the settlement administrator's website for at least 180 days.
--	--	---

		19. Should the notice letter be provided in any language other than English? If the notice will be provided in a language(s) other than English, a certified copy of the translated notice (together with an English-language copy) should be attached to the proposed order and judgment as an exhibit. <u>As to the proposed order and judgment (ROA 105):</u> 20. The proposed order and judgment should be revised consistent with the above. 21. The settlement agreement and any amendments thereto should be attached as exhibits to the proposed order and judgment (along with the notice letter in all languages). 22. Counsel information should be removed from the caption page. 23. The proposed order and judgment should be revised to include the order, rather than (apparently) referring to a separate order. 24. The proposed order and judgment should state the gross settlement amount, all deductions to be made from the gross settlement amount, and the net settlement amount. 25. The proposed order and judgment should identify plaintiff, plaintiff's counsel, defendants and the settlement administrator. 26. The proposed order and judgment should state that the court retains jurisdiction pursuant to Civil Procedure Code section 664.6 to enforce the settlement and the order and judgment. 27. The proposed order and judgment should state how notice of entry of the judgment will be given to the aggrieved employees. 28. The proposed order and judgment should state that the court orders the parties and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 29. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval is continued to <u>October 15, 2026 at 2:00 p.m.</u> in Department CX105 to permit the
--	--	--

		parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
15	West v. Amen Clinics, Inc., a Medical Corporation, et al. 2024-01423922	<u>Defendants Amen Clinics, Inc., Amen Clinics Los Angeles, P.C., Amen Clinics Northern California, P.C., Amen Clinics Southern California, P.C., and Mindworks Innovations, Inc.'s Motion to Bifurcate</u> Defendants Amen Clinics, Inc., Amen Clinics Los Angeles, P.C., Amen Clinics Northern California, P.C., Amen Clinics Southern California, P.C., and Mindworks Innovations, Inc. move for an order bifurcating the issue of plaintiff Gregory West's employment status and staying class discovery until after a determination of plaintiff's employment status. For the following reasons, defendants' motion to bifurcate is denied without prejudice to addressing bifurcation closer to trial and the motion to stay class discovery is denied. California Civil Procedure Code section 598 states that the court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, with some exceptions that do not appear to apply here. The order shall be made no later than the close of the pretrial conference in cases in which a pretrial conference is to be held or, in other cases, no later than thirty days before the trial date. <i>Id.</i> The court, on its own motion, may make such an order at any time. <i>Id.</i> Civil Procedure Code section 1048(b) states that "[t]he court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." <i>See also</i> Civ. Proc. Code § 379.5. The court will hold a pretrial conference approximately 30 days before the trial date. Thus, in this case, and pursuant to section

598, the court may make an order bifurcating liability and damages at the pretrial conference or, on its motion, "at any time." *Id.*

Defendants present reasons they contend bifurcating the action to try plaintiff's employment status before other issues would be sensible in this case. Plaintiff identifies reasons he opposes bifurcation. The court has insufficient information at this stage of the case to make a bifurcation ruling. Before making any such order, the court intends to review the parties' witness lists and other relevant trial materials, which the court recognizes will likely not be available until closer to the trial date. The court should then have more complete information on which to base a decision about bifurcation. Defendants' motion to bifurcate is denied without prejudice.

Defendants argue class discovery should be stayed because "[A]men Clinics asserts that West will not be able to establish he can act as a representative for a class of non-exempt employees," and "[a]ddressing the narrow issue of whether Plaintiff qualifies as the 'class representative' before discovery as to all other potential 'class members' will be the most efficient way to proceed with the case." Brief (ROA 211) at 9:7-10. Defendants' view of plaintiff's ability to prove his employment status does not constitute good cause to stay class discovery until after plaintiff proves his status. *See, e.g., Williams v. Superior Court* (2017) 3 Cal.5th 531, 558-59 ("[T]he way to raise lack of standing is to plead it as an affirmative defense, and thereafter to bring a motion for summary adjudication or summary judgment, not to resist discovery until a plaintiff proves he or she has standing"). Defendants' motion to stay class discovery is denied.

Plaintiff's Request for Judicial Notice (ROA 238) is denied as the materials were not relevant to the disposition of the motion.

Plaintiff to give notice.

Status Conference

The court has reviewed the parties' joint status conference statement filed June 5, 2026 (ROA 255), and based thereon continues the June 11, 2026 status conference to September 24, 2026 at 9:00 a.m. in Department CX105.

The parties are ordered to file a joint status conference statement at least 5 court days before the hearing.

Clerk to give notice.